

STATE OF NEW YORK

8423--A

2025-2026 Regular Sessions

IN SENATE

June 10, 2025

Introduced by Sen. SCARCELLA-SPANTON -- read twice and ordered printed, and when printed to be committed to the Committee on Rules -- recommitted to the Committee on Civil Service and Pensions in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the civil service law, in relation to providing a service credit to military spouses and to surviving spouses of veterans in competitive examinations

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Subdivision 1 of section 85 of the civil service law is amended by adding two new paragraphs (e) and (f) to read as follows:

(e) The term "military spouse" shall mean the spouse of a veteran or non-disabled veteran.

(f) The term "surviving spouse" shall mean the spouse of a member of any branch of the armed forces of the United States who served and subsequently died due to a cause attributed to their military service.

§ 2. Paragraph (a) of subdivision 2 of section 85 of the civil service law, as added by chapter 790 of the laws of 1958, is amended to read as follows:

(a) On all eligible lists resulting from competitive examinations, the names of eligibles shall be entered in the order of their respective final earned ratings on examination, with the name of the eligible with the highest final earned rating at the head of such list, provided, however, that for the purpose of determining final earned ratings,

(1) Disabled veterans shall be entitled to receive ten points additional in a competitive examination for original appointment and five points additional credit in a competitive examination for promotion, ~~and~~

(2) Non-disabled veterans shall be entitled to receive five points additional credit in a competitive examination for original appointment

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD13165-05-6

1 and two and one-half points additional credit in a competitive examina-
2 tion for promotion[~~-~~].

3 (3) Military spouses shall be entitled to receive three points addi-
4 tional credit for a competitive examination for original appointment and
5 one and one-half points for a competitive examination for promotion, and

6 (4) Surviving spouses shall be entitled to receive six points addi-
7 tional credit for both a competitive examination for original appoint-
8 ment and a competitive examination for promotion.

9 § 3. This act shall take effect immediately.